# WHOLESALE FLORAL SUPPLY AGREEMENT

*Ozark Bloom Distributors ↔ Petal & Stem*

Effective Date: March 1, 2026

This Wholesale Floral Supply Agreement ("Agreement") is entered into as of March 1, 2026 (the "Effective Date"), by and between **Ozark Bloom Distributors, LLC**, an Arkansas limited liability company with its principal place of business at 4417 Distribution Drive, Little Rock, Arkansas 72209 ("Supplier"), and **Petal & Stem**, a sole proprietorship doing business at 118 Race Street, Searcy, Arkansas 72143 ("Buyer"). Supplier and Buyer are each referred to individually as a "Party" and collectively as the "Parties."

### Recitals

WHEREAS, Supplier sources, grades, and wholesales fresh-cut flowers, greenery, and related floral products to retail florists throughout Arkansas and the greater Ozark region, and Buyer operates a retail floral business at the address above and wishes to purchase such products from Supplier on a recurring basis for use in everyday arrangements, wedding and event work, and general retail sale;

NOW, THEREFORE, in consideration of the mutual covenants contained in this Agreement, and for other good and valuable consideration, the receipt and sufficiency of which are acknowledged, the Parties agree as follows:

## 1. Definitions

**1.1** "Products" means fresh-cut flowers, greenery, floral hardgoods, and related supplies listed on Schedule A, as may be updated from time to time by written agreement of the Parties.

**1.2** "Order" means a purchase order submitted by Buyer to Supplier specifying the Products and quantities requested for a given Delivery Week, which means the seven-day period, Monday through Sunday, during which Supplier delivers Product against that Order.

## 2. Term and Renewal

**2.1** *Initial Term*. This Agreement begins on the Effective Date and continues for an initial term of twelve (12) months (the "Initial Term").

**2.2** *Renewal*. Following the Initial Term, this Agreement automatically renews for successive twelve (12) month terms (each, a "Renewal Term," and together with the Initial Term, the "Term") unless either Party gives the other Party written notice of non-renewal at least sixty (60) days before the end of the then-current Term. Notice of non-renewal must be delivered in accordance with Section 12.5 and is effective only upon actual receipt by the other Party. Except as provided in Section 10, neither Party may terminate this Agreement for convenience during the Initial Term or any Renewal Term.

## 3. Products and Ordering

**3.1** *Standing Order*. Buyer will submit a standing weekly Order to Supplier no later than 5:00 p.m. Central Time each Wednesday, specifying Products and quantities for the following Delivery Week. Buyer may submit supplemental Orders for seasonal or event needs, including wedding and holiday volume, with at least five (5) business days' notice, subject to Supplier's available inventory.

**3.2** *Substitutions*. If a specified Product is unavailable, Supplier may substitute a comparable Product of equal or greater value upon notice to Buyer, unless Buyer has designated the Product as "no substitution" on the Order.

## 4. Pricing

**4.1** *Base Pricing*. The Products and their initial per-unit wholesale prices are set forth in Schedule A, attached to and incorporated into this Agreement.

**4.2** *Annual Adjustment*. Beginning on the first anniversary of the Effective Date, and on each anniversary thereafter during the Term, the prices set forth in Schedule A will increase by four percent (4%) over the prices in effect immediately prior to that anniversary, to reflect Supplier's increased costs of cultivation, cold-chain transport, and fuel. Supplier will provide Buyer with an updated Schedule A reflecting the adjusted prices no later than thirty (30) days before each such anniversary.

**4.3** *Extraordinary Cost Increases*. Supplier may also pass through documented extraordinary increases in fuel or import costs exceeding ten percent (10%) in any ninety (90) day period, upon thirty (30) days' written notice to Buyer.

## 5. Payment Terms

**5.1** *Invoicing and Due Date*. Supplier will invoice Buyer weekly upon delivery of each Order, and Buyer will pay each invoice in full within fifteen (15) days of the invoice date.

**5.2** *Late Payment*. Any invoice not paid within the period described in Section 5.1 accrues a late charge equal to eighteen percent (18%) per annum, calculated daily on the outstanding balance from the invoice due date until paid in full. Supplier's acceptance of a late payment does not waive Supplier's right to collect the late charge or to enforce any other provision of this Agreement. Supplier may also suspend deliveries if any invoice remains unpaid more than thirty (30) days after its due date, upon written notice to Buyer.

## 6. Delivery

**6.1** Supplier will deliver Ordered Products to Buyer's location at 118 Race Street, Searcy, Arkansas, on the schedule set forth in Section 3.1, in temperature-controlled vehicles maintained between thirty-four (34) and thirty-eight (38) degrees Fahrenheit. Risk of loss passes to Buyer upon delivery; Supplier is not responsible for Product condition resulting from Buyer's handling, storage, or care after delivery.

## 7. Quality and Rejected Goods

**7.1** Buyer must inspect each delivery upon receipt and report any quality defect, shortage, or damage to Supplier within twenty-four (24) hours of delivery. For any defect timely reported, Supplier will, at its option, replace the affected Product in the next scheduled delivery or issue a credit against Buyer's next invoice. Failure to report within this period waives Buyer's right to a remedy for that delivery.

## 8. Confidentiality

**8.1** Each Party may share pricing, forecasts, and other non-public business information with the other Party in connection with this Agreement, will use such information only to perform its obligations under this Agreement, and will not disclose it to third parties except as required by law.

## 9. Insurance and Indemnification

**9.1** Supplier will maintain commercial general liability insurance with limits of at least $1,000,000 per occurrence during the Term. Each Party will indemnify and hold harmless the other Party from third-party claims arising from the indemnifying Party's negligence or willful misconduct in connection with this Agreement.

## 10. Termination

**10.1** *For Cause*. Either Party may terminate this Agreement upon written notice if the other Party materially breaches this Agreement and fails to cure the breach within thirty (30) days after receiving written notice describing it. Either Party may also terminate immediately upon written notice if the other Party becomes insolvent or subject to bankruptcy proceedings not dismissed within sixty (60) days.

**10.2** *Effect of Termination*. Upon termination, Buyer will pay for all Products delivered and Orders in progress as of the termination date. Sections 5, 8, 9, and 12 survive termination of this Agreement.

## 11. Limitation of Liability

**11.1** Neither Party is liable to the other for indirect, incidental, consequential, or special damages arising out of this Agreement. Supplier's total liability under this Agreement in any twelve (12) month period is limited to the amount paid by Buyer to Supplier during that period.

## 12. General Provisions

**12.1** *Independent Contractors; Assignment*. The Parties are independent contractors, and nothing in this Agreement creates a partnership, joint venture, or agency relationship. Neither Party may assign this Agreement without the other Party's prior written consent, except in connection with a merger, acquisition, or sale of substantially all of its assets.

**12.2** *Force Majeure; Governing Law*. Neither Party is liable for delay or failure to perform due to causes beyond its reasonable control, including weather events, crop failure, transportation disruptions, and labor shortages. This Agreement is governed by the laws of the State of Arkansas, without regard to conflict-of-law principles.

**12.3** *Entire Agreement; Amendment*. This Agreement, including Schedule A, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions. Amendments must be in writing and signed by both Parties.

**12.4** *Severability; Counterparts*. If any provision of this Agreement is held unenforceable, the remaining provisions remain in full force and effect. This Agreement may be signed in counterparts, including by electronic signature, each of which is deemed an original.

**12.5** *Notices*. Notices under this Agreement must be in writing and delivered by hand, certified mail, or a recognized courier to the addresses set forth in the preamble above, or to such other address as a Party designates in writing.

## Schedule A — Product Pricing

*Wholesale prices effective as of the Effective Date. Subject to adjustment under Section 4.*

| Product | Unit | Wholesale Price |
|---|---|---:|
| Rose, standard (assorted colors) | per stem | $1.65 |
| Rose, garden variety | per stem | $2.40 |
| Spray rose | per bunch (10 stems) | $9.75 |
| Peony (seasonal, Apr–Jun) | per stem | $4.10 |
| Ranunculus | per bunch (10 stems) | $14.50 |
| Hydrangea | per stem | $3.25 |
| Lily, Oriental | per stem | $2.85 |
| Tulip (seasonal, Jan–Apr) | per bunch (10 stems) | $8.20 |
| Carnation, standard | per stem | $0.75 |
| Alstroemeria | per bunch (10 stems) | $7.90 |
| Eucalyptus, seeded | per bunch | $5.60 |
| Floral foam brick | per case (36 units) | $42.00 |

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date first written above.

**PETAL & STEM**

___________________________________

Signature
Name: Dana Whitfield
Title: Owner
Date: ____________________

**OZARK BLOOM DISTRIBUTORS, LLC**

___________________________________

Signature
Name: Marcus T. Ridgeway
Title: Director of Sales
Date: ____________________